

Reserved On : 17.06.2024 vs Meena Kumari on 2 July, 2024

Author: M.S. Ramachandra Rao

Bench: M.S. Ramachandra Rao

2024:HHC:4277 IN THE HIGH COURT OF HIMACHAL PRADESH SHIMLA FAO(FC) No. 20 of 2024 .

Reserved on : 17.06.2024.

D a t e o f d e c i s i o n : 0 2 . 0 7 . 2 0 2 4
..... Suresh Kumar
.....Appellant.

Versus

Meena Kumari

...Respondent

Coram:

The Hon'ble Mr. Justice M.S. Ramachandra Rao, Chief Justice.

The Hon'ble Mr. Justice Satyen Vaidya, Judge.
..... For the
Appellant : Mr. R.L. Chaudhary, Advocate.

For the Respondent: None.

M.S. Ramachandra Rao, Chief Justice This appeal is filed by the appellant-husband under Section 19 of the Family Courts Act, 1984, challenging the judgment dt.

09.04.2024, passed in HMA Petition no. 125/2018 by the Principal Judge, Family Court, Hamirpur, HP (Family Court).

2. The appellant had sought divorce from the respondent alleging cruelty and desertion under Section 13 (1)(ia) and (ib) of the Hindu Marriage Act, 1955 .

3. The parties had married each other on 06.07.1991 and have two sons.

The petition filed by appellant .

4. In the petition seeking divorce filed on 01.05.2018, the appellant contended that ever since marriage, the respondent was not keen to live with him, that she told him shortly after they got married that she had married him under pressure of her parents, that she was also in a relationship with a third party before marriage, and was desirous of continuing her friendship with the said third party. He also contended that she stated that because he was of dark complexion, she does not want to live with him. He claimed that the respondent threatened him that she would commit suicide if she is prevented from continuing her love affair with her boy friend.

5. He contended that she was in the habit of leaving the matrimonial home every now and then, and at times would reside with her paramour and would return after 8-9 days.

6. He alleged that she refused to reside with his parents and so he was forced to stay away from his parents to salvage his matrimonial life, but she was non-cooperative.

7. He alleged that she leveled false allegations against him and his parents and left the matrimonial home to reside with her parents in November, 2009 without any rhyme or reason and was staying separately since then, and she did not visit his house even when his parents died.

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8. He also contended that she filed a false and frivolous complaint under Section 12 of the Protection of Women from Domestic Violence Act, 2005 and also under Section 125 Cr. P.C. at Dehradun only to harass him.

The case of the respondent

9. The respondent denied the said allegations and contended that previously the appellant had filed a similar divorce petition bearing No. 130 of 2009 before the Family Court, Hamirpur, but the same had been transferred to Dehradun by an order passed by the Supreme Court, and had been eventually dismissed.

10. She denied the allegations leveled against her by the appellant and contended that the appellant was committing acts of physical and mental cruelty against her and was not properly maintaining her and her children.

The events before the Family Court

11. Before the Family Court, the appellant examined PWs 1 to 4 and marked Ext. PW-3/A and PW4/A apart from Ext. P.1 to P.15.

12. The respondent examined RW-1 to RW-3 and marked Ext RW-

1/A to RW-3/A and Ext. R-1 to R-8.

The judgment of the Family Court

13. By order dt. 09.04.2024, the Family Court dismissed the said .

petition.

14. The Family Court held that allegations of cruelty are not specific in nature and that the same were only general allegations, on the basis of which relief cannot be granted.

15. The Family Court also held that in his cross-examination, the appellant as PW-4 stated that he himself had not seen the respondent having any objectionable intimacy with a person named by him and that he was told about it by his parents. It noted the appellant had not examined either of his parents nor had filed any tangible material to suggest that his parents had witnessed such conduct on the part of the respondent.

16. The Family Court also noted that though the appellant contended that the respondent was living separately from the appellant since November, 2009, but the appellant admitted in his cross-

examination that when he suffered a paralytic stroke, the respondent had come to see him, though he stated that the respondent started a quarrel with him at that time.

17. The Family Court referred to the evidence of PW-1 who had supported the appellant and pointed out that his evidence about the alleged relationship of the respondent with the third party is also hearsay and he himself has admitted that the respondent wanted to live .

with the appellant, but the appellant was not inclined to take her back.

18. It also referred to the evidence of PW-2 and PW-3 and noted that appellant had also quoted hearsay knowledge about the alleged relationship of the respondent with a third party and admitted that he had no personal knowledge.

19. The Family Court further held that there was no evidence to prove the allegations leveled by the appellant against the respondent and his own witnesses did not support his case. It also noted that though the appellant stated that he had sought intervention of Panchayat on several occasions, but none from the said Panchayats had been examined and no family member of the appellant had stepped into the witness box to support the case of the appellant.

20. It also noted that there is discrepancy in the name of the alleged paramour of the respondent mentioned in the pleading as 'Deepak' which was altered in the cross-examination of the appellant as PW-4 as 'Pradeep'. It also noted that neither the alleged paramour had been made a party nor adultery was pleaded as a ground for seeking divorce.

21. The Family Court then discussed the evidence adduced by the respondent and her father as also Ext. R-1, the compromise entered .

into between the parties. It held that in the said compromise the appellant had unconditionally admitted the allegations leveled against him, had apologized for his acts and conduct, expressed remorse and undertook not to ill-treat or abuse the respondent.

22. The Family Court also noted that in the complaint under Section 12 of the Protection of Women from Domestic Violence Act, maintenance of Rs.1500/- per month had been awarded in favour of the respondent and the appellant was also directed to pay Rs. 50,000/-

as compensation to the respondent.

23. It held that in view of the said circumstances, the plea of the appellant that the respondent had treated him with cruelty has not been established, that the appellant was also not able to prove that the respondent had an intention to desert him and in fact it was the appellant who doubted the character of the respondent from the very beginning and refused to stay with her without any reasonable cause.

24. It held that the appellant had made no attempts to bring the respondent back to the matrimonial home. It held that previous petition Ext. P.A filed by the appellant before the Principal District Judge, Family Court, Dehradun was dismissed on 04.01.2013 for non-

prosecution under Order 9, Rule 2 CPC and so the instant petition for the same relief on the same cause of action is barred by law.

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The instant Appeal

25. Challenging the same, this appeal is filed.

26. Learned Counsel for the appellant contended that the order of the Family Court is erroneous as the evidence on record had not been properly appreciated and the order is perverse. He also re-iterated the allegations leveled by the appellant against the respondent both with regard to cruelty and desertion.

27. We have independently considered the material evidence on record.

28. The divorce petition has not been filed on the basis of adultery, though the pleading to that effect has been made, and no direct or even circumstantial evidence of the alleged relationship of the respondent with the third party is adduced. All the witnesses examined by the appellant have only claimed knowledge, that too through hearsay.

29. In Ext. R-1 Compromise entered into between the parties, the appellant had admitted that he wrongly doubted the character of the respondent and apologized for his acts and conduct and undertook not to ill-treat or abuse the respondent.

30. There are also findings by the Judicial Magistrate, Dehradun in the complaint filed by the respondent against the appellant under Section .

12 of the Protection of Women from Domestic Violence Act and compensation was also awarded to the respondent therein.

31. Even the witnesses examined by the appellant admitted that the respondent was ready and willing to live with the appellant but he was not inclined to take her back. Thus, it is clear that there is no evidence of any intention on the part of the respondent to desert the appellant.

32. We therefore agree with the reasoning of the Family Court and find no merit in the appeal. It is accordingly dismissed. No costs.

33. Pending application(s), if any also stands disposed of.

(M.S. Ramachandra Rao) Chief Justice.

(Satyen Vaidya) Judge.

July 02, 2024 (hemlata)